

9:00 A.M.

Calendar Lines # 1

Case Name Blossom Hill Estates Homeowners Associations vs Louise Wollert et al

Case No. 23CV409917

Motion to Amend Clerical Error in Judgment and Order for Sale

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On January 12, 2023, Plaintiff Blossom Hill Estates Homeowners Association (“The Association”) filed a Complaint against Defendant Louise C. Wollert for judicial foreclosure, breach of contract, common counts, and damages. The property at issue is 5554 Spinnaker Drive #4, San Jose, California 95123 (“Subject Property”). The Plaintiff served the Complaint via substituted service on January 31, 2024.¹ No timely response was filed. The Association entered default judgment against Defendant on July 6, 2023 and a judgment was entered on April 9, 2024. Default judgment in the amount of \$26,360.52 was authorized by the Honorable Evette Pennypacker.

B. RELEVANT PROCEDURAL HISTORY

On May 21, 2024, the Plaintiff filed a motion to amend judgment to include foreclosure of the lien and permit sale of the property located at 5554 Spinnaker Drive, #4, San Jose, California 95123 as prayed for in its Complaint. The plaintiff’s motion was heard on June 25, 2024 with the Honorable Shella Deen presiding. On July 25, 2024, Judge Deen executed an Order denying the plaintiff’s request on the grounds there was insufficient proof of the amendment. The Plaintiff filed a revised motion to amend on July 25, 2024. After the hearing, on October 3, 2024, the Honorable Shella Deen, once again denied the motion for lack of evidence. The motion was denied without prejudice. On October 28, 2024, the plaintiff filed its third motion to amend the judgment. On May 20, 2025, the Honorable Deen denied the motion without prejudice a third time for lack of service. On that same day, the plaintiff filed its fourth motion to amend. On August 19, 2025,² the Honorable Shella Deen heard the motion and granted the motion and directed Plaintiff to file the amended judgment within 10 days of the order. The Amendment to Judgment was authorized by Judge Deen and filed on October 1, 2025. The Court notes that no opposition papers were filed by the defendant in any of the four hearings and the motion was deemed unopposed. On October 30, 2025, a writ of possession was filed.

C. PRESENT MOTION TO AMEND

On May 8, 2026, Plaintiff The Association filed this motion to amend a clerical error in judgment and order for sale pursuant to Code of Civil Procedure section 473(d). The Association seeks to amend a sentence to the July 6, 2023, Default Judgment to include an Order for Sale on the August 27, 2025 Judgment. Specifically, Plaintiff seeks to amend the sentence to include the following sentence: *“The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.”* (Plaintiff’s motion, p. 2). Plaintiff asserts the omission of that sentence was a clerical error because the relief was expressly pled in its Complaint for Judicial Foreclosure, Breach of Contract, Common Counts and Damages filed on January 12, 2023. (Plaintiff’s motion, p. 2 and “Compliant”). The motion was accompanied by a proof of service to Defendant Louise Wollert (“Wollert”) indicating U.S. mail service on May 8, 2026.

¹ Plaintiff asserts that the default was entered on January 31, 2023. (See, Plaintiff’s Motion, p., 2). However, per the Court records, this is an error. Default was entered on January 31, 2024.

² Plaintiff indicates in its moving papers that on August 27, 2025, the Honorable Shella Deen entered an Amendment to the Judgment dated April 9, 2024 and Order of Sale (the “Judgment”). This date conflicts with the Court records as stated above. The hearing occurred on August 19, 2025 and the formal Order and Amended Judgment was signed and authorized on October 1, 2025.

On May 21, 2026, Plaintiff filed a notice to amend to also add a specific sentence: “*The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.*” This notice was accompanied by a proof of service including U.S. Mail and Certified mail service to defendant Wollert on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court carefully reviewed the following: Plaintiff’s application for an order correcting a clerical error in judgment and order for sale; memorandum of points and authorities; Declaration of Jordan M. O’Brien in support of the plaintiff’s motion and attached Exhibits A-F (totaling 64 pages); notice of hearing of amendment (totaling 3 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 473 subdivision (d) provides, “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code of Civ. Proc. §473(d); see also *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228, 1238 [“It is true that a court has the inherent power to correct clerical error in its records at any time so as to conform its records to the truth, but it may not amend a judgment to substantially modify it or materially alter the rights of the parties under its authority to correct clerical error.”]).

“A nunc pro tunc order is a retroactive entry by the court. It is effective at the date which the court states it is to be effective, not at the date it was made. It is an exercise of inherent power of the court for the purpose of doing justice between the parties.” (*Wexler v. Goldstein* (1956) 146 Cal.App.2d 410, 412). It is “generally limited to correcting clerical errors[.]” (*People v. Borja* (2002) 95 Cal.App.4th 481, 485).

Once a judgment has been entered, a trial court loses most of its jurisdiction to modify or set it aside. (See *APRI Ins. Co. v. Superior Court* (1999) 76 Cal.App.4th 176, 181 [“A court may reconsider its order granting or denying a motion and may even reconsider or alter its judgment so long as judgment has not yet been entered. Once judgment has been entered, however, the court may not reconsider it and loses its unrestricted power to change the judgment. It may correct judicial error only through certain limited procedures such as motions for new trial and motions to vacate the judgment.”]). One of the permitted grounds for amending a judgment is to correct a clerical error. (Code of Civ. Proc. §473(d)).

III. ANALYSIS

This is the fifth request for amendment to the default judgment by the plaintiff. Plaintiff asserts that there was a clerical error in default under Code of Civil Procedure section 473(d). The Association seeks to amend a sentence to the July 6, 2023, Default Judgment³ to include an Order for Sale on the August 27, 2025 Judgment. The plaintiff seeks to add specific language as follows: “*The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney’s fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale.*” Plaintiff categorizes the addition of

³ In its moving papers., the plaintiff seeks an amendment to the July 6, 2023, “Default Judgment,” but court records indicate that the July 6, 2023 is the Entry of Default and the Default Judgment was entered on April 9, 2024.

this sentence as a clerical error on the grounds that the relief was expressly pled in its Complaint for Judicial Foreclosure, Breach of Contract, Common Counts and Damages filed on January 12, 2023. (Plaintiff's motion, p. 2 and "Compliant). The Plaintiff does not state a specific section in its pleadings.

Upon the Court's own review, the relevant portion appears in the Prayer for Relief, sections 3 and 7 of the Plaintiff's Complaint as follows:

- 3. Judgment that the lien be foreclosed, that the Subject Property be sold according to law by a levying officer, that the proceeds of the sale be applied in payment of the amounts due to the Association, that Defendant and all persons claiming an interest to the property, subsequent to the filing of the lien, either as lien claimants, judgment creditors, claimants under a junior trust deed, purchasers, lienholder or otherwise, be barred and foreclosed from all rights, claims, interest, or equity of redemption the Subject Property, and every part of the Subject Property, if and when the time for redemption has elapsed; and
- 7. Judgment and execution for the Association against Defendant for any deficiency that may remain after applying all the proceeds of the sale of the Subject Property properly applicable to the satisfaction of the amounts found due by the Court; (Complaint).

The Court believes this request stretches the limits of a clerical error and from a plain language reading, the addition of the sentence is not clerical. However, based on the totality of the factual and procedural background and that these sections provide grounds that are consistent with the default judgment, order for sale of the Subject Property at issue, and does not substantially modify or materially alter the rights of the parties under its authority, the court will allow the amendment.

The motion as the other four prior motions for amendments filed by the plaintiff and served on the defendant is unopposed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court grants the amendment to add the following language to the Default Judgment: "The proceeds of the sale shall be applied to the amounts due to Plaintiff pursuant to this Judgment, including attorney's fees and costs, and any unpaid homeowner association dues incurred between the date of entry of the Judgment and the date of the sale."

The Court will prepare the formal Order.

Calendar Lines # 2
Case Name Antonieta Madrigal et al vs Lucile Salter Packard Children's Hospital at Stanford et al
Case No. 23CV414581
Motion for Summary Adjudication
Before the court is defendant's motion for summary adjudication against plaintiffs' second and eighth causes of action, plaintiff Madrigal's third cause of action, and plaintiff Wolkoff's fifth, sixth, and seventh causes of action. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.